

Opinion of SOTOMAYOR, J.

than Congress, and even if wholly nonparticipatory and lacking any judicial review, is sufficient to bar a court from recognizing a *Bivens* remedy. That reasoning, as disturbing as it is wrong, marks yet another erosion of *Bivens*' deterrent function in the law enforcement sphere.⁸

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The Court thinly veils its disapproval of *Bivens*, ending its opinion by citing a string of dissenting opinions and single-Member concurrences by various Members of this Court expressing criticisms of *Bivens*. *Ante*, at 500–501. But the Court unmistakably stops short of overruling *Bivens* and its progeny, and appropriately so. Even while declining to extend *Bivens* to new contexts, this Court has reaffirmed that it did “not inten[d] to cast doubt on the continued force, or even the necessity, of *Bivens* in the search-and-seizure context in which it arose.” *Ziglar*, 582 U. S., at 134. Although today's opinion will make it harder for plaintiffs to bring a successful *Bivens* claim, even in the Fourth Amendment context, the lower courts should not read it to render *Bivens* a dead letter.

That said, the Court plainly modifies the *Bivens* standard in a manner that forecloses Boule's claims and others like them that should be permitted under this Court's *Bivens* precedents. That choice is in tension with the Court's insistence that “prescribing a cause of action is a job for Congress, not the courts.” *Ante*, at 486; see *ante*, at 496 (cautioning against “frustrat[ing] Congress' policymaking role” when considering whether special factors counsel hesitation). Faithful adherence to this logic counsels maintaining *Bivens* in its current scope, but does not support changing the status quo to constrict *Bivens*, as the Court does today. Congress,

⁸ Even beyond its doctrinal innovations on the merits, the Court also fashions a brand new, *Bivens*-specific procedural rule under which it excuses Egbert's forfeiture of his argument that CBP's administrative process suffices as an alternative remedy. *Ante*, at 497–498, n. 3.